

Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) (Terms and Conditions of Service of Chairperson and Members) Rules, 2017

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State of Andhra Pradesh - Act

Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) (Terms and Conditions of Service of Chairperson and Members) Rules, 2017

ANDHRA PRADESH

India

Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) (Terms and Conditions of Service of Chairperson and Members) Rules, 2017

Rule

ANDHRA-PRADESH-CORE-DIGITAL-DATA-AUTHORITY-EFFECTIVE-DELIVERY-OF-E-SERVICES-TERMS-AND-CONDITIONS-OF-SERVICE-OF-CHAIRPERSON-AND-MEMBERS-RULES-2017 of 2017

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Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) (Terms and Conditions of Service of Chairperson and Members) Rules, 2017

Published vide Notification No. G.O.Ms.No.5, Information Technology, Electronics and Communications (e-Gov), dated

12.3.2018

G.O.Ms.No.5, Information Technology, Electronics and Communications (e-Gov). - In exercise of the powers conferred by sub-section (1) of Section 38 read with subsection (4) of Section 13 of the Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) Act, 2017 (

15 of 2017

), the Government of Andhra Pradesh hereby make the following Rules, namely:

1.

Short title.

- These rules may be called the Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) (Terms and Conditions of Service of Chairperson and Members) Rules, 2017.

2.

Definition.

(1)

In these Rules, unless the context otherwise requires, -

(a)

"Act" means the Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) Act, 2017 (Act No. 15 of 2017

) ;

(b)

"Authority" means the Andhra Pradesh Core Digital Data Authority established under sub-section (1) of Section 10 of the Act ;

(c)

"full-time Chairperson" means the Chairperson of the Authority appointed on full time basis under Section 11 of the Act ;

(d)

"Member" means the part-time Member of the Authority appointed under Section 11 of the Act ;

(e)

"part-time Chairperson" means the Chairperson of the Authority appointed on part-time basis under Section 11 of the Act ;

(2)

Words and expressions used herein but not defined, and defined in the Act, shall have the same meanings assigned to them in the Act.

3.

Search-cum-Selection Committee for appointment of Chairperson and Member.

(1)

The Chairperson of the Authority and every part-time Member thereof shall be appointed by the State Government on the recommendation of a Search-cum-Selection Committee consisting of-

(a)

Chief Secretary

- Chairperson ex officio; .

(b)

Special Chief Secretary (Finance)

- Member ex officio;

(c)

Principal Secretary, Information Technology, Electronics and Communications Department

- Member ex officio;

(d)

Secretary, General Administration Department

- Member ex officio;

(e)

Two experts from the relevant field to be nominated by the Minister in-charge of the Information

Technology, Electronics and Communications Department.

(2)

The Search-cum-Selection Committee may regulate its own procedure for the purpose of sub-rule (1).

4.

Declaration of financial or other interest.

- The Chairperson and every Member shall, on or before their appointment as such, declare by an affidavit the particulars of previous employment and shareholding and financial and other interest in any entity.

5.

Pay.

(1)

The full time Chairperson shall be entitled to a monthly salary and to such allowances as are applicable to a Chief Secretary to the Government of Andhra Pradesh. In case the full time Chairperson is a pensioner of any State Government or of the Central Government, the monthly salary shall be reduced by amount equal to the pension. In case a portion of the pension has been commuted, the amount to be reduced shall be computed as if it has not been so commuted.

(2)

The full time Chairperson shall not be entitled to any sitting fee for attending the meeting of the Authority.

(3)

The part-time Chairperson and Members shall be entitled to receive an allowance of ten thousand rupees and eight thousand rupees respectively, for attending a meeting of the Authority.

6.

Leave travel concession.

- The full-time Chairperson shall be entitled to leave travel concession at the same rate as are applicable to the Chief Secretary to the Government.

7.

Leave and leave encashment.

(1)

The full time Chairperson shall be entitled to thirty days of earned leave for every year of service.

(2)

The payment of leave salary during leave shall be governed by leave Rules of the State Government.

(3)

The full-time Chairperson shall be entitled to encashment of fifty per-cent, of earned leave standing to his credit at any time, subject to the condition that the encashment shall be permitted only once during any calendar year for a maximum of twelve days in a calendar year.

(4)

The Governor of Andhra Pradesh shall be the competent authority to sanction leave to the full-time Chairperson.

8.

Gratuity and pension.

- The Chairperson shall not be entitled to gratuity or pension on account the service rendered as the Chairperson.

9.

Medical facility.

- The full-time Chairperson shall be entitled, while in the service of the Authority, to medical treatment and facilities as provided as applicable to the Chief Secretary of the Government.

10.

Oath of office and secrecy.

- Every person appointed to be the Chairperson and every Member shall, before entering upon his office, make and subscribe to an oath of office and of secrecy before the Minister in-charge of the Information Technology, Electronics and Communications Department in Form I and Form II, respectively, as specified in the Schedule annexed to these Rules.

11.

Residuary provisions.

- Any matter relating to the terms and conditions of service of the Chairperson and Members with respect to which no express provision has been made in these Rules, shall be referred by the Authority to the State Government for its decision.

Schedule

Form I

(see Rule 10)

Form of oath of office for Chairperson/Members of the Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services)

I, _____ having been appointed as Chairperson/Member of the Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) do solemnly affirm/swear in the name of God that I will faithfully and conscientiously discharge my duties as Chairperson/Member to the best of my ability, knowledge and judgment, without fear or favour, affection or ill-will.

(Name of the Chairperson/ Member)

Form II

(see Rule 10)

Form of oath of secrecy for Chairperson/Members of the Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services)

I, _____, having been appointed as Chairperson/Member of the Andhra Pradesh Core Digital Data Authority (Effective Delivery of e-Services) do solemnly affirm/swear in the name of God that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as Chairperson/Member of the said Authority except as may be required for the due discharge of my duties as Chairperson/Member.

(Name of the Chairperson/ Member)

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